

		Appeal” (Appeal No. G062498) and the “Indemnity Appeal” (Appeal No. G061947)). As to fees for the third appeal (the “Contribution Appeal” (Appeal No. G062641)), Duncan contends that the award would be premature until the Court enters an order on her renewed Contribution Motion, which is set for hearing on the same date as this motion. Duncan concedes that, if the Court denies her Contribution Motion, then Plaintiffs would be the prevailing party and entitled to an award of fees pursuant to the parties’ operating agreement. (Oppn at 2:18-22.) Duncan’s Motion for Contribution is denied. Duncan has not disputed the reasonableness of the amount sought in fees. Nor has Duncan offered any argument in opposition to Plaintiffs’ request for \$3,060 in fees and costs incurred in filing this motion. Accordingly, the Plaintiffs’ motion is granted in full. Plaintiffs are awarded their requested fees as follows: 1. For the “Fees Appeal” (Appeal No. G062498): \$20,843.95 2. For the “Indemnity Appeal” (Appeal No. G061947): \$21,477.25 3. For the “Contribution Appeal” (Appeal No. G062641): \$19,150 4. Fees and Costs incurred in filing this motion: \$3,060 Plaintiffs to give notice.
3	Montag vs. Mirador at Rancho Niguel Association 20-01165493	Motion – Other Plaintiff, Elaine Montag (“Plaintiff”), moves for an Order to Show Cause re: Contempt against Defendant, Mirador At Rancho Niguel Association (“HOA”) for the HOA’s failure to comply with the Court’s Order dated August 13, 2024 and Judgment dated October 3, 2024, ordering the HOA to comply with the terms of the written settlement agreement between Plaintiff and the HOA and complete repairs required under the Settlement Agreement by October 18, 2024. Plaintiff also moves for an award of her attorneys’ fees and costs incurred in the contempt proceedings and enforcing the Settlement Agreement in the sum of \$39,392.35 should the Court determine that the HOA is guilty of the contempt charged. Plaintiff’s Motion is DENIED. “There are two types of civil contempt, direct and indirect contempt.” (<i>Moore v. Superior Court of Orange County</i> (2020) 57 Cal.App.5th 441, 454 (“<i>Moore</i>”).) Direct contempt is when the

	offending conduct is committed in the court’s presence and punished summarily, whereas, indirect contempt is not committed in the immediate view and presence of the court. (<i>Ibid.</i>) “An ‘indirect contempt’ requires a sequential series of steps: (1) an affidavit is presented to the court of the facts constituting the contempt; (2) a warrant of attachment or order to show cause is issued; (3) service of the warrant or order; (4) if there is a warrant (not applicable here), arrest and bail may occur; (5) a hearing, at which the judge investigates the charge and hears any answer, including witnesses; and (6) findings and punishment. [Citation.]” (<i>Ibid.</i>) Code of Civil Procedure section 1211 states, in relevant part: “When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt, or a statement of the facts by the referees or arbitrators, or other judicial officers.” (Code Civ. Proc. § 1211(a), emphasis added.) “A contempt proceeding [for indirect contempt] is commenced by the filing of an affidavit and a request for an order to show cause.” (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286, citing Code Civ. Proc., § 1211 (“<i>Cedars-Sinai Imaging Medical Group</i>”).) “After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.” (<i>Id.</i> at p. 1286.) The essential facts to establish contempt for violation of a court order are ‘(1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.’ [Citation.]” (<i>Moore, supra</i>, 57 Cal.App.5th at p. 456.) “[T]he filing of a sufficient affidavit is a jurisdictional prerequisite to a contempt proceeding.” (<i>Koehler v. Superior Court</i> (2010) 181 Cal.App.4th 1153, 1169 (“<i>Koehler</i>”).) In indirect contempt proceedings based on a disobedience of a prior court order, a valid order and judgment must establish the following: (1) facts establishing the court’s jurisdiction (e.g., personal service or subpoena, validity of the court order allegedly violated, etc.); (2) the contemnor’s knowledge of the order disobeyed; (3) the contemner’s ability to comply; and (4) the contemnor’s willful disobedience of the order. (<i>Id.</i> at pp. 1160, 1169; <i>Moore, supra</i>, 57 Cal.App.5th at p. 456 [“The essential facts to establish contempt for violation of a court order are ‘(1)
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	the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.’ [Citation]”].) “The burden of proof is on the <i>moving party</i> to prove the respondent’s ability to comply (rather than on the respondent to prove inability).” (<i>Koehler, supra</i>, 181 Cal.App.4th at p. 1169, emphasis in original [finding contempt must be reversed and annulled where there was no substantial evidence that petitioner had the ability to comply with the order; <i>In re Cassil</i> (1995) 37 Cal.App.4th 1081, 1088, fn. 1 [The burden of proof rests with the moving party when a punitive contempt judgment is imposed...in the case of a punitive contempt the burden of proving ability to comply rests with the moving party.].) Here, the declarations submitted in support of the motion for order to show cause re contempt indicates that at a continued hearing on Plaintiff’s Motion to Enforce Settlement on August 13, 2024, the Court granted the Motion to Enforce Settlement Agreement, stating in its August 13, 2024 Minute Order, “HOA to complete all repairs by 10/18/24.” (Declaration of Kirk C. Pearson, ¶ 5, Ex. 13.) Plaintiff submitted a proposed judgment to the Court on August 16, 2024 on the Motion to Enforce the Settlement Agreement, and on October 3, 2024, the Court entered judgment pursuant to the terms of the Settlement Agreement and ordered the HOA to complete all repairs by October 18, 2024. (<i>Id.</i>, ¶¶ 6-7, Ex. 14.) Based on the above, there appears to be a valid judgment providing that “[t]he HOA shall complete repairs to the property located at 28148 El Montanero, Laguna Niguel, CA 92677 (the “Property”), including the repairs to the interior wood framing at Property, in accordance with the terms of the Settlement Agreement by October 18, 2024.” (Ex. 14 to Plaintiff’s Compendium of Evidence.) However, Plaintiff does not submit sufficient evidence showing the HOA’s actual knowledge of the order. Plaintiff provides that “At the August 13, 2024 hearing, both Dr. Montag’s counsel and the HOA’s counsel appeared and waived notice of the Court’s order [granting the Motion to Enforce Settlement Agreement].” (Motion, 7:6-10.) Plaintiff does not present evidence showing service of the signed judgment on the HOA. “ ‘Notice waived’ means the lawyer waives his right to written notice by opposing counsel of the <i>lawyer’s understanding</i> of the court’s ruling or of further notice concerning a hearing date. [Citation.]” (<i>Cedars-Sinai Imaging Medical Group, supra</i>, 83 Cal.App.4th at p. 1287, fn. 7 [“No one would suggest that, by waiving notice of a ruling
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granting summary judgment, the parties had waived their right to the entry and service of a signed judgment”].)

Additionally, Plaintiff does not show the ability to comply with the judgment to complete repairs by October 18, 2024. Plaintiff counsel’s declaration indicates that they received an email on September 27, 2024, representing that the HOA had completed the repairs to the Property. (Pearson Decl., ¶ 10, Ex. 17.) Plaintiff provides that on October 4, 2024, the HOA was informed that the HOA’s contractor had drywalled the entire interior of the Property despite that the terms of the settlement agreement specifically excludes any drywall repairs by the HOA, and that she requested that the HOA remove the drywall so that she could conduct water testing of the Property. (Pearson Decl., ¶ 12, Ex. 17; Declaration of Elaine Montag (“Plaintiff’s Decl.”), ¶¶ 8-10, Ex. 5.) Plaintiff provides that the HOA’s contractor removed the bottom of one to two feet of drywall, and that she arranged for water testing to be conducted on October 13, 2024, “to confirm that the HOA’s repairs were fully and properly completed and thus that the water intrusion that the repairs were meant to repair as in fact remedied.” (Plaintiff’s Decl., ¶¶ 8, 10-12.) Water Intrusion Specialist conducted the water testing of the Property on October 13, 2024, and on October 16, 2024, Plaintiff received an email from Luke Cruz of Water Intrusion Specialist explaining the water test findings. (*Id.*, ¶¶ 12-13.) The evidence indicates that it was not until October 29, 2024, after the October 18, 2024, deadline to complete repairs, that Plaintiff’s attorney, Shelby Daws, sent an email to the HOA’s counsel, Andrew Mallon and David Swedelson, notifying them of the results of the water at the Property and providing a copy of the water testing report. (Pearson Decl., ¶ 13.) Based on the foregoing, as the HOA was not informed of the results of the water testing until after the deadline to complete repairs had passed, Plaintiff fails to show that the HOA could have completed repairs by October 18, 2024, in accordance with the judgment.

Further, by failing to show the ability to comply by October 18, 2024, Plaintiff also fails to show willful disobedience of the order and judgment.

Based on the foregoing, the declarations filed in support of the motion which served as the affidavit, do not present facts sufficient to constitute contempt. Thus, Plaintiff’s Motion for Order to Show Cause Re Contempt is DENIED.

		The Court GRANTS Plaintiff's request for judicial notice of Exhibits 12-14 pursuant to Evidence Code section 452(d) as court records, and Exhibit 15 pursuant to Evidence Code section 452(h) as "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy," but declines to take judicial notice of the truth of hearsay statement therein. Plaintiff to give notice.
4	Mejia Villa vs. Castaneda 23-01314626	Motion to Compel Deposition (Oral or Written) Plaintiff Sarai Mejia Villa ("Plaintiff") filed a motion to compel the deposition of Defendant Daniel March ("Defendant"). Plaintiff requests \$2,580 in sanctions. As an initial matter, Plaintiff still has not shown proof of service of the motion on Defendant. In the opposition, however, Defendant notes that he was served by email on March 17, 2025. Code of Civil Procedure section 2025.450(a) authorizes the Court to compel a party's attendance and testimony at deposition and produce documents described in the deposition notice if, after service of a deposition notice and without having served a valid objection, the party fails to appear for examination or fails to proceed with it. Here, the Court finds that Defendant has not failed to appear or proceed with his deposition. In the opposition, Defendant advised the Court that he does not oppose the taking of his deposition. Rather, Defendant requested that his deposition be continued because (1) Defendant was experiencing health issues, including a stroke and cardiovascular surgery, (2) Defendant filed a demurrer the operative complaint, and (3) Defendant wanted an opportunity to determine whether he would retain counsel to represent him in this matter. Defendant also argues that he communicated his request for a continuance to Plaintiff's counsel and Plaintiff's counsel did not response to Defendant's communications prior to filing this motion. Given the above, the Court finds that an order compelling the deposition of Defendant March is unwarranted at this time, as Defendant has neither failed to appear for examination nor refused to proceed with the examination.